

that the lease was a contract within the meaning of the Act, and that it was a contract with, or on behalf of, the council.

That a lease containing such terms as those in the lease in question is a contract, cannot be doubted : but it is said that, the words of the statute being "contract or employment," such contracts only are intended as partake in some degree of the nature of employments, as contracts for work, or the furnishing of supplies : and it was further contended that the proviso, that the being a proprietor or shareholder of any company contracting with the council of the borough for lighting or supplying with water or insuring against fire shall not disqualify, shews that the contracts intended by the Act were not such as that in the present case.

We think, however, that the meaning of the term "contract" ought not to be so restricted, but that it should receive its ordinary legal construction. This opinion is rather strengthened by the proviso, which excepts certain particular cases in which the application of the general rule would be inconvenient, and the contemplated mischief not probable. Such a contract as that [850] in question would, however, in the hands of one of the council of the borough, let in all the liability to partiality and favour which it was the object of the statute to prevent.

We also think that a contract with the corporation by its corporate name is a contract with, by, or on behalf of the town council, within the meaning of the twenty-eighth section of the Act. By the sixth section, corporations are to be styled mayor, aldermen and burgesses ; and the lease in question is in the proper corporate name and under the corporate seal. Whether the lease were granted by the council since the passing of the Act or not, in form it would be a lease under the corporate seal, and in the name of the corporation. The council, as such, are not a corporation ; nor have the individual members any power to contract as such for the corporation. The council of a borough have a general power, by the statute, to act for the corporation : and the restraining clause, sect. 94, indicates that the council would, but for that clause, have a general power to lease or otherwise dispose of the corporation lands. But the statute gives them no further power, nor indeed means, of contracting, than as representing the corporation ; and what they do must be in the corporate name and under the corporate seal. If the operation of the twenty-eighth section was limited to cases of contracts made in terms with the town council, it would be ineffectual, as all contracts would be made by the town council in the name of the corporation. The council, as observed by my brother Patteson in the case, referred to in the argument, of *Regina v. Paramore* (10 A. & E. 286), are not [851] the corporation : but, as the council only can enforce or remit the performance of contracts made nominally with the corporation, we think that a contract in the name of the corporation and under the corporate seal is, practically, and within the meaning of the Act of Parliament, a contract with the council ; and this, whether such contract were made before or after the passing the Municipal Corporation Act. And this view of the case removes the objection taken to the replication, that the time of the demise is not stated, and that it may therefore have been before the passing of the Act.

Upon the whole, therefore, we think that the judgment should be entered for the Crown.

Judgment for the Crown.

ELEANOR THOMAS *against* BENJAMIN THOMAS. Saturday, February 5th, 1842.

Declaration for non-performance of an agreement stated to be, that defendant, when required, should convey a certain house and premises to plaintiff for her life, and that plaintiff, at all times during her possession thereof, should pay defendant and S. T. (since deceased), their executors, &c., 1l. yearly towards the ground rent payable in respect of the said house and other premises, and keep the house in repair. Pleas : 1. Non assumpsit ; 2. That there was not the consideration alleged. Issues thereon. The agreement was between plaintiff, who was the widow, and defendant and S. T., the executors, of J. T. After reciting that J. T., shortly before his death, had verbally expressed his desire that plaintiff, in addition to his other provision for her, should have the house, &c. during her life, and reciting that defendant and S. T. were desirous that such intention should be carried into effect, it was witnessed that, "in consideration of such desire and of the premises," the executors would convey the house, &c. to the plaintiff for

her life; "provided nevertheless, and it is hereby further agreed and declared," that the plaintiff should during her possession pay to the executors 1l. yearly towards the ground rent payable in respect of the said house and adjoining premises, and should keep the said house, &c. in repair. Held, that the agreement so to pay, and to keep the premises in repair, was a consideration for the agreement by the defendant and S. T.; and that respect for the wishes of the testator was no part of the legal consideration for their agreement, and need not be stated in the declaration.

[S. C. 2 G. & D. 226; 11 L. J. Q. B. 104; 6 Jur. 645. Discussed, *Gardiner v. Gardiner*, 1861, 12 Ir. C. L. R. 573; *Lee v. Mathews*, 1880, 6 L. R. Ir. 534.]

Assumpsit. The declaration stated an agreement between plaintiff and defendant that the defendant should, when thereto required by the plaintiff, by all necessary deeds, conveyances, assignments, or other [852] assurances, grants, &c., or otherwise, assure a certain dwelling house and premises, in the county of Glamorgan, unto plaintiff for her life, or so long as she should continue a widow and unmarried, and that plaintiff should, at all times during which she should have possession of the said dwelling house and premises, pay to defendant and one Samuel Thomas (since deceased), their executors, administrators or assigns, the sum of 1l. yearly towards the ground rent payable in respect of the said dwelling house and other premises thereto adjoining, and keep the said dwelling house and premises in good and tenantable repair: that, the said agreement being made, in consideration thereof, and of plaintiff's promise to perform the agreement, Samuel Thomas and the defendant promised to perform the same: and that, although plaintiff afterwards and before the commencement of the suit, to wit, &c., required of defendant to grant, &c., by a necessary and sufficient deed, &c., the said dwelling house, &c. to plaintiff for her life, or whilst she continued a widow, and though she had then continued, &c., and still was, a widow and unmarried, and although she did, to wit on, &c., tender to the defendant for his execution a certain necessary and sufficient deed, &c., proper and sufficient for the conveyance, &c., and although, &c. (general readiness of plaintiff to perform), yet defendant did not nor would then or at any other time convey, &c.

Pleas. 1. Non assumpsit. 2. That there was not the consideration alleged in the declaration for the defendant's promise. 3. Fraud and covin.

Issues thereon.

At the trial, before Coltman J., at the Glamorganshire Lent Assizes, 1841, it appeared that John Thomas, the [853] deceased husband of the plaintiff, at the time of his death, in 1837, was possessed of a row of seven dwelling houses in Merthyr Tidvil, in one of which, being the dwelling house in question, he was himself residing; and that by his will he appointed his brother Samuel Thomas (since deceased) and the defendant executors thereof, to take possession of all his houses, &c., subject to certain payments in the will mentioned, among which were certain charges in money for the benefit of the plaintiff. In the evening before the day of his death, he expressed orally a wish to make some further provision for his wife; and on the following morning he declared orally, in the presence of two witnesses, that it was his will that his wife should have either the house in which he lived and all that it contained, or an additional sum of 100l. instead thereof.

This declaration being shortly afterwards brought to the knowledge of Samuel Thomas and the defendant, the executors and residuary legatees, they consented to carry the intentions of the testator so expressed into effect; and, after the lapse of a few days, they and the plaintiff executed the agreement declared upon; which, after stating the parties, and briefly reciting the will, proceeded as follows.

"And, whereas the said testator, shortly before his death, declared, in the presence of several witnesses, that he was desirous his said wife should have and enjoy during her life, or so long as she should continue his widow, all and singular the dwelling house," &c., "or 100l. out of his personal estate," in addition to the respective legacies and bequests given her in and by his said will; "but such declaration and desire was not reduced to writing in the lifetime of the said John Thomas [854] and read over to him; but the said Samuel Thomas and Benjamin Thomas are fully convinced and satisfied that such was the desire of the said testator, and are willing and desirous that such intention should be carried into full effect: now these presents witness, and

it is hereby agreed and declared by and between the parties, that, in consideration of such desire and of the premises," the executors would convey the dwelling house, &c. to the plaintiff and her assigns during her life, or for so long a time as she should continue a widow and unmarried: "provided nevertheless, and it is hereby further agreed and declared, that the said Eleanor Thomas, or her assigns, shall and will, at all times during which she shall have possession of the said dwelling house, &c., pay to the said Samuel Thomas and Benjamin Thomas, their executors, &c., the sum of 1l. yearly towards the ground rent payable in respect of the said dwelling house and other premises thereto adjoining, and shall and will keep the said dwelling house and premises in good and tenantable repair:" with other provisions not affecting the questions in this case.

The plaintiff was left in possession of the dwelling house and premises for some time: but the defendant, after the death of his co-executor, refused to execute a conveyance tendered to him for execution pursuant to the agreement, and, shortly before the trial, brought an ejectment, under which he turned the plaintiff out of possession. It was objected for the defendant that, a part of the consideration proved being omitted in the declaration, there was a fatal variance. The learned Judge overruled the objection, reserving leave to move to enter a nonsuit. Ultimately a verdict was found for the plaintiff on all the issues; and, in Easter term [855] last, a rule nisi was obtained pursuant to the leave reserved.

Chilton and W. M. James now shewed cause. It is sufficient if there be any legal consideration for this agreement. [E. V. Williams conceded that, in a Court of Law, he could not go into the adequacy of the consideration, and that, if the consideration was in part a legal and in part only a moral one, the latter part need not be stated in the declaration (a).] The objection taken at the trial was, that the consideration for the agreement, instead of being that which is alleged in the declaration, was, as stated in the agreement itself, a respect for the testator's intentions, in which case this would be a mere voluntary agreement: the defendant now appears to contend that respect for the testator's intentions is a part of the legal consideration, and ought to have been set out. But it could not be so characterized. All that a plaintiff is required to do is to set out the legal effect of the contract, and to shew performance on the plaintiff's part: here she was in possession for three or four years, paying rent, under an undertaking to pay rent and keep the premises in repair: that is a good consideration: and, if so, it cannot be necessary in pleading it to allege additional motives, which, in the eye of the law, do not enter into the consideration. Thus, in debt for rent on a demise of a messuage with the furniture, though in fact the furniture forms an important item in estimating the rent, yet, as, in point of [856] law, the rent issues out of the real property, and not out of the furniture, it is sufficient to allege a demise of the real property; *Farewell v. Dickenson* (6 B. & C. 251). Parties are often influenced by motives which form no part of the legal consideration, such as the character of a tenant, or the merits or distresses of the party intended to be benefited; and the circumstance that such motives happen to be stated in the agreement cannot affect the legal rights of the parties, nor make it necessary to state those motives in the declaration.

E. V. Williams, contra. The consideration alleged in the declaration is solely the promise to pay rent and repair: therefore it lay on the plaintiff to prove that to have been the true and sole consideration; *Beech v. White* (12 A. & E. 668). But the evidence shews that the testator's declaration, as brought before and recognized by the executors, was part, if not the whole, of the consideration. It is conceded that where there is a good legal consideration conjoined with a moral one, it is not necessary to state both; but here regard for the testator's intentions was not, under the circumstances, a mere moral consideration; for the declaration had been made and reduced to writing so formally that it might well be thought valid in law, and so the agreement be made by the executors and residuary legatees to buy peace (c). If the testator's expressed wish was part or the whole of the consideration, the declaration should have so alleged it, and a nonsuit ought to be entered. But, in fact, if it be not the consideration, there is no [857] legal consideration at all: this is a mere gift cum onere; and, had it been stated truly, the declaration would have been bad on

(a) On this point Chilton cited *Bul. N. P. 147*, and *1 Chitt. Plead. 295, 300*, 6th ed.

(c) See *Haigh v. Brooks*, 10 A. & E. 309, and *Brooks v. Haigh*, 10 A. & E. 323.

general demurrer. [Patteson J. The rent, if issuing out of the house, might follow the gift; but the obligation to repair does not.] The expressions in the agreement with reference to the ground rent, and the evidence of one of the witnesses, shew that the property was held under a superior landlord: the assignee's obligation to pay rent and repair would therefore be implied from the very nature and state of things which existed between the parties; Bayley J. in *Burnett v. Lynch* (a)¹. [Lord Denman C.J. There is nothing to shew who was liable to pay the ground rent. Coleridge J. The 1l. is reserved payable to the executors: it is quite different from an assignee's liability.] Still the annexing of such a payment cannot be regarded as the consideration. What is meant by the consideration for a promise, but the cause or inducement for making it? Plowden (b), commenting on *Sharlington v. Strotton*, says, "Note: That by the civil law *nudum pactum* is defined thus, *Nudum pactum est ubi nulla subest causa præter conventionem; sed ubi subest causa, fit obligatio, et parit actionem.*" In Chitty on Contracts (c) the following passage is cited from the Code Civil: "L'obligation sans cause, ou sur une fausse cause, ou sur une cause illicite, ne peut avoir aucun effet." The rent and repairs cannot be said to have been the cause or motive which induced the executors to make this agreement: it must have been such a belief as is recited in the [858] agreement itself, which, though a good moral consideration, and perhaps sufficient to raise a use, is not sufficient to support a promise. The proviso merely causes the donee to take the gift charged with the burthen of paying the rent and keeping the premises in repair; and she cannot turn these conditions into a consideration. It is clear that, if the proviso had not existed, the executors might have retracted at any moment; their right to do so cannot be qualified by the circumstance that the gift was cum onere; otherwise, when carried out to conveyance, it would be a conveyance on good, as distinguished from valuable, consideration. Suppose a subsequent sale; a purchaser for value would have been entitled, though he had purchased with notice of the gift. A consideration, to be sufficient against such a purchaser within the saving clause of the 27 Eliz. c. 4, s. 4 (a)², must be such a consideration as would support an assumpsit. Were it otherwise, donees by voluntary gift would confirm their estates by covenanting to repair a monument, maintain a plantation, or the like. Here the donors, in effect, say, that the donee is to pay no purchase money, but is to do what a purchaser for full consideration would have to do, pay the rent and maintain in repair. And it is to be observed that, in that part of the agreement where the purchase money is usually mentioned, instead of any valuable consideration there is a mere reference to the testator's wishes; which is followed in a different part of the deed by a simple provision for the burthens commonly belonging and incident to the subject matter. The defendant is therefore entitled to a verdict on the first issue.

[859] Lord Denman C.J. There is nothing in this case but a great deal of ingenuity, and a little wilful blindness to the actual terms of the instrument itself. There is nothing whatever to shew that the ground rent was payable to a superior landlord; and the stipulation for the payment of it is not a mere proviso, but an express agreement. (His Lordship here read the proviso.) This is in terms on express agreement, and shews a sufficient legal consideration quite independent of the moral feeling which disposed the executors to enter into such a contract. Mr. Williams's definition of consideration is too large: the word *causa* in the passage referred to means one which confers what the law considers a benefit on the party. Then the obligation to repair is one which might impose charges heavier than the value of the life estate.

Patteson J. It would be giving to *causa* too large a construction if we were to adopt the view urged for the defendant: it would be confounding consideration with motive (a)³. Motive is not the same thing with consideration. Consideration means something which is of some value in the eye of the law, moving from the plaintiff: it may be some benefit to the plaintiff, or some detriment to the defendant; but at all

(a)¹ 5 B. & C. 589, 605. See also the judgments of Holroyd J. and Littledale J. in the same case.

(b) Note to *Sharlington v. Strotton*, Plowd. 309.

(c) P. 28. 3d ed., 1841. Code Civil, liv. 3, tit. 3, ch. 2, sect. 4, § 1131. As to the passage from the Code, see p. 861, note (a), post.

(a)² See Newland on Contracts, c. 24, p. 392, et seq.

(a)³ See note (a), p. 861, post.

events it must be moving from the plaintiff. Now that which is suggested as the consideration here, a pious respect for the wishes of the testator, does not in any way move from the plaintiff; it moves from the testator; therefore, legally speaking, it forms no part of the consideration. Then it is said that, if that be so, there [860] is no consideration at all, it is a mere voluntary gift: but when we look at the agreement we find that this is not a mere proviso that the donee shall take the gift with the burthens; but it is an express agreement to pay what seems to be a fresh apportionment of a ground rent, and which is made payable not to a superior landlord but to the executors. So that this rent is clearly not something incident to the assignment of the house; for in that case, instead of being payable to the executors, it would have been payable to the landlord. Then as to the repairs: these houses may very possibly be held under a lease containing covenants to repair; but we know nothing about it: for any thing that appears, the liability to repair is first created by this instrument. The proviso certainly struck me at first as Mr. Williams put it, that the rent and repairs were merely attached to the gift by the donors; and, had the instrument been executed by the donors only, there might have been some ground for that construction; but the fact is not so. Then it is suggested that this would be held to be a mere voluntary conveyance as against a subsequent purchaser for value: possibly that might be so: but suppose it would: the plaintiff contracts to take it, and does take it, whatever it is, for better for worse: perhaps a *bonâ fide* purchase for a valuable consideration might override it; but that cannot be helped.

Coleridge J. The concessions made in the course of the argument have, in fact, disposed of the case. It is conceded that mere motive need not be stated: and we are not obliged to look for the legal consideration in any particular part of the instrument, merely because [861] the consideration is usually stated in some particular part: *ut res magis valeat*, we may look to any part. In this instrument, in the part where it is usual to state the consideration, nothing certainly is expressed but a wish to fulfil the intentions of the testator: but in another part we find an express agreement to pay an annual sum for a particular purpose; and also a distinct agreement to repair. If these had occurred in the first part of the instrument, it could hardly have been argued that the declaration was not well drawn, and supported by the evidence. As to the suggestion of this being a voluntary conveyance, my impression is that this payment of 1l. annually is more than a good consideration: it is a valuable consideration: it is clearly a thing newly created, and not part of the old ground rent.

Rule discharged (*a*).

[862] IN THE EXCHEQUER CHAMBER. (ERROR FROM THE QUEEN'S BENCH.)

HENRY CREASE *against* SIR JOSEPH S. G. SAWLE, BART., AND OTHERS. 1842. The Duke of Cornwall, being entitled, as lord of a manor, to a certain quantity of the tin ore raised by the bound owners within the manor, which was rendered by

(*a*) In a commentary on the Code Civil, in "*Codes Français Expliqués*," &c., by J. A. Rogron, Paris, 1836, the words of the Code, "*L'obligation sans cause, ou sur une fausse cause, ou sur une cause illicite, ne peut avoir aucun effet*" (*ante*, p. 857), are discussed; and the note upon "*sans cause*" is as follows.

"La cause est ce qui détermine l'engagement que prend une partie dans un contrat; il ne faut pas la confondre avec la cause implicite du contrat, autrement le motif qui porte à contracter. La cause de l'engagement d'une partie est le fait ou la promesse de l'autre partie; elle peut aussi consister dans une pure libéralité de la part de l'une des parties: ainsi, lorsque je m'oblige à payer mille francs à Paul, pour tels services que son père m'a rendus, la cause déterminante du contrat, ce sont les services qui m'ont été rendus; le motif qui m'a porté à contracter, c'est le désir de m'acquitter envers lui des services de son père; si celui-ci ne m'a jamais rendu les services dont il a été parlé dans l'acte, le contrat est sans cause. Je m'oblige à donner mille francs à Paul pour qu'il suive une affaire pendante devant le tribunal de la Seine: la cause déterminante est la promesse de Paul qu'il suivra mon affaire; si elle est jugée irrévocablement au moment où nous avons stipulé, le contrat est sans cause. Autre exemple: je vous vends ma maison; la cause de la vente est, d'un côté, la maison elle-même, de l'autre, le prix. Enfin je donne, dans la forme des dispositions entre vifs, ma maison à Paul, qui l'accepte: ma libéralité est ici la seule cause du contrat." P. 209.